

When You Die Without a Will or Trust, the State Decides

Many people put off estate planning because it feels uncomfortable or easy to delay. But if someone dies without a valid will or trust, the result is not simply that the family “figures it out.” Instead, state law determines who receives the person’s assets and who has authority to handle the estate.

This is called dying “intestate.” Intestacy laws provide a default plan for distributing assets when a person has not created their own estate plan. While those laws are designed to create an orderly process, they cannot account for a person’s unique family relationships, personal wishes, or specific goals.

Intestacy Laws

Intestacy laws vary from state to state, but they generally follow a fixed family hierarchy. A surviving spouse, children, parents, siblings, or other relatives may inherit depending on the circumstances.

- If you are married, and don’t have any living children, then your spouse will likely inherit your entire estate.
- If you are married and have children, then distributing your assets under your state’s intestacy laws can and likely will become more complicated. In many states, your spouse may not inherit everything. Your assets could be divided between your spouse and your children, which can create significant financial and legal headaches for your surviving family — especially if you have a blended family.
- If you have children but are not married, then our children will likely inherit your estate, often in equal shares. You have no control over who gets what, or any opportunity to delay your children in receiving their inheritance.
- If you have no spouse and no children, then the court will look to your other living relatives, starting with your parents, then siblings, and so on.

Some state laws may not recognize unmarried partners.. Your longtime partner could be left with nothing, and your favorite niece could be completely left out. Stepchildren (unless legally adopted), or close friends, no matter how much a part of your life they were, are also not recognized under intestacy laws.

The problem is that the legal result may not match what the person would have wanted. For example, if someone is married with children, the surviving spouse may not automatically receive everything. In blended families, assets may be divided between a spouse and children from a prior relationship in ways that create confusion or financial strain.

Intestacy laws also typically do not provide for unmarried partners, stepchildren who were not legally adopted, close friends, or charitable organizations. Even if those people were deeply important to the person who died, they may receive nothing without a valid estate plan.

Probate Can Add Time, Cost, and Stress

When someone dies without a trust, the estate often must go through probate. Probate is the court-supervised process for identifying assets, paying debts and taxes, and distributing remaining property to the proper heirs or beneficiaries.

Probate can serve an important legal purpose, but it can also be slow, expensive, and public. Court filings may disclose information about assets, debts, and beneficiaries. The process can also create delays at a time when family members may need access to funds or clear authority to act.

A will can provide instructions for probate, but it usually does not avoid probate by itself. A properly funded trust, by contrast, may allow many assets to pass outside of court supervision, making administration more private and efficient.

Lack of Planning Can Create Family Disputes

Without clear instructions, family members may disagree about what the deceased person would have wanted. Those disagreements can involve who should be in charge, how assets should be divided, whether property should be sold, or how sentimental items should be handled.

Even families with strong relationships can experience conflict when emotions are high and the legal path is unclear. A thoughtful estate plan helps reduce uncertainty and gives loved ones a roadmap to follow.

Planning Is Especially Important for Minor Children

For parents of minor children, estate planning is not only about assets. It is also about naming the people who should care for children if both parents are unable to do so.

Without a valid guardianship nomination, a court will decide who should serve as guardian. The court will try to act in the child's best interests, but the person selected may not be the person the parents would have chosen.

A Will or Trust Lets You Stay in Control

Creating an estate plan allows you to decide who receives your assets, who manages your estate, who makes decisions if you become incapacitated, and how your loved ones should be protected.

A complete plan may include a will, trust, powers of attorney, healthcare directives, beneficiary designations, and other documents depending on the situation. The right plan should reflect your family, your assets, and your goals—not a one-size-fits-all formula.

Estate Planning Protects the People You Love

Estate planning is not simply about preparing for death. It is about reducing uncertainty, avoiding unnecessary conflict, and making difficult times easier for the people you care about most.

Without a will or trust, the state's default rules may control the outcome. With a thoughtful estate plan, your wishes—not the state's assumptions—guide what happens next.